

24STLC06456 24STLC06456

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Case Number: 24STLC06456 Hearing Date: July 16, 2026 Dept: 26

TENTATIVE RULING:

Defendant Jose Antonio Chavez's Motion for Terminating Sanctions and Request for Monetary Sanctions is granted in part and denied in part. The Court dismisses Plaintiff's Complaint filed on 09/09/2024 with prejudice but does not award Defendant monetary sanctions.

Defendant is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Analysis:

Plaintiff Angel De Jesus Aguilar Calderon ("Plaintiff"), in propria persona, filed the instant action for motor vehicle negligence against Defendant Jose Antonio Chavez ("Defendant") on September 9, 2024. Defendant filed an Answer on June 9, 2025.

On March 4, 2026, the Court granted Defendant's (1) Motion to Compel Responses to Form Interrogatories; Request for Monetary Sanctions; and (2) Motion to Deem Requests for Admission Admitted; Request for Monetary Sanctions. (Minute Order, 03/04/26.) The following day, the Court granted Defendant's (1) Motion to Compel Responses to Special Interrogatories; Request for Monetary Sanctions; and (2) Motion to Compel Responses to Request for Production of Documents; Request for Sanctions, as to the request to compel responses. (Minute Order, 03/05/26.) The Court ordered Plaintiff to serve verified responses to the interrogatories and requests for production without objections, and to pay monetary sanctions of \$470.00, within 20 days' notice of the orders. (Minute Order, 03/04/26 and

03/05/26.) Notices of the rulings were filed with the Court on March 5 and 6, 2026. (Notices of Ruling, filed 03/05/26 and 03/06/26.)

On April 14, 2026, Defendant filed the instant Motion for Terminating Sanctions and Request for Monetary Sanctions. The Motion was served on Plaintiff by first-class mail on the same day. No opposition has been filed to date.

Discussion

Defendant seeks an order dismissing Plaintiff's Complaint under Code of Civil Procedure section 2023.030, pursuant to which the court may impose a terminating sanction by one of the following orders:

(1)

An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2)

An order staying further proceedings by that party until an order for discovery is obeyed.

(3)

An order dismissing the action, or any part of the action, of that party.

(4)

An order rendering a judgment by default against that party."

(Code Civ. Proc., § 2023.030, subd. (d).) Where a party willfully disobeys a discovery order, courts have the discretion to impose terminating, issue, evidence or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subds. (d), (g); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) The court should look at the totality of the circumstances in determining whether terminating sanctions are appropriate. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (*Van Sickle v. Gilbert* (2011) 196

Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Sup. Ct. (1986) 180 Cal.App.3d 701, 707.)

On March 4, 2026, the Court ordered Plaintiff to serve responses to Form Interrogatories, and to pay monetary sanctions of \$470.00 to defense counsel. (Motion, McKeon Decl., ¶7 and Exh. A.) On March 5, 2026, the Court ordered Plaintiff to serve responses to Special Interrogatories and Requests for Production. (Id. at ¶7 and Exh. B.) The responses were to be served and the sanctions paid within 20 days’ notice of the rulings. (Id. at ¶7 and Exhs. A-B.) Defendant served notice of the rulings on Plaintiff on March 5 and 6, 2026. (Ibid.) As of the filing of the instant Motion, however Plaintiff has not served responses nor paid sanctions as ordered. (Id. at ¶11.)

Under the above authority, terminating sanctions are warranted for Plaintiff’s non-compliance with the discovery orders. Despite notice of the discovery motions, service of the Court’s orders, and service of the instant Motion for sanctions, Plaintiff has not served responses, paid sanctions, nor filed any opposition. This demonstrates that Plaintiff’s compliance with the Court’s orders cannot be achieved through lesser sanctions. Although terminating sanctions are a harsh penalty, “[t]he court [is] not required to allow a pattern of abuse to continue ad infinitum.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 280.)

Plaintiff also moves for monetary sanctions under subdivision (a) of the moving statute, on account of Defendants’ misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Failure to respond to an authorized method of discovery, especially in light of the Court’s orders, is a misuse under Code of Civil Procedure section 2023.010. (Code Civ. Proc., § 2023.010, subd. (d).) However, the Court finds terminating sanctions appropriate, and sufficient, to address the abuse. Plaintiff’s request for another order that Defendant pay sanctions of \$470.00 in connection with the Motion to Deem Requests for Admissions, Set One, as Admitted, is unnecessary. The prior order stands, regardless of Plaintiff’s non-compliance; re-issuing the order is of no effect.

Conclusion

Defendant Jose Antonio Chavez’s Motion for Terminating Sanctions and Request

for Monetary Sanctions is granted in part and denied in part. The Court dismisses Plaintiff's Complaint filed on 09/09/2024 with prejudice but does not award Defendant monetary sanctions.

Defendant is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Moving party to give notice.